

Court No. - 38

Case :- WRIT - C No. - 7448 of 2019

Petitioner :- M/S Gogi Ice And Cold Storage And Another

Respondent :- The Managing Director, Dakshinanchal Vidyut
Vitran Nigam Ltd. And Another

Counsel for Petitioner :- Mayank Kumar Agrawal

Counsel for Respondent :- Baleshwar Chaturvedi

Hon'ble Abhinava Upadhya,J.

Hon'ble Jayant Banerji,J.

Put up this case on Friday i.e. 08.03.2019 as fresh to enable the learned counsel appearing for the respondents to seek instructions.

When the case is next listed, the name of Ms. Usha Kiran be shown as counsel for the respondents.

Order Date :- 5.3.2019

A. V. Singh

(Jayant Banerji, J.) (Abhinava Upadhya, J.)

Court No. - 34

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Respondent :- The Managing Director, Dakshinanchal Vidyut Vitran Nigam Ltd. And Another

Counsel for Petitioner :- Mayank Kumar Agrawal

Counsel for Respondent :- Baleshwar Chaturvedi, Usha Kiran

Hon'ble Sudhir Agarwal, J.

Hon'ble Rajendra Kumar-IV, J.

1. Heard Sri Mayank Kumar Agrawal, learned counsel for petitioner and Smt. Usha Kiran, learned counsel for respondents.

2. Dispute relates to liability of dues during the period of disconnection whether petitioner is liable to pay minimum charges during the period of aforesaid disconnection or not.

3. Learned counsel for the petitioner did not dispute that petitioner has statutory alternative remedy of raising his grievance in respect of payment of electricity dues before Consumer Grievance Redressal Forum under para 7.10(i) of Electricity Supply Code, 2005 (hereinafter referred to as 'Code') read with U.P.E.R.C. (Consumer Grievance Redressal Forum & Ombudsman) Regulations, 2003 (hereinafter referred to as 'Regulations, 2003') and thereafter, remedy is provided before Ombudsman under para 7.10 (iv) of the Code read with Regulations, 2003. He also could not substantiate any argument so as not to relegate the petitioner to avail aforesaid alternative remedy.

4. In view thereof, this writ petition is dismissed on the ground of alternative remedy.

Order Date :- 8.3.2019

Manoj